

trust, had advanced it to his brother, John Phillips, a banker, without taking any other precaution than accepting a simple acknowledgment of the loan. John Phillips continued to pay interest upon the money for some time, but eventually became insolvent, and the fund was lost. The Court, under these circumstances, called upon the trustee to make good the amount. The decision was reversed in the House of Lords, probably on the ground of the plaintiff's acquiescence (*c*).

Late Acts. — By 23 & 24 Vict. c. 38, s. 11, and the general order before referred to, trustees having power to invest in Government or Parliamentary Securities are now expressly authorised to invest not only in Consols, but also in *Three per Cent. Reduced Bank Annuities* and *New Three per Cent. Bank Annuities*.

18. **23 & 24 Vict. c. 145.** — By a later Act of the same session (*d*), trustees under an instrument dated *since 28th August, 1860*, and having money in their hands which it was their duty to invest at interest, might invest the same in *any* of the Parliamentary stocks or public funds, or in Government securities, *with power of variation*, but no investment except in Consols was to be made without [such consent as therein mentioned. But this section was rarely acted upon, and has since been repealed (*e*).]

19. **30 & 31 Vict. c. 132, s. 2.** — By another Act (*f*) [*316] it is enacted, that "it shall be lawful for *any trustee, executor, or administrator to invest any trust fund in his possession or under his control in *any securities*, the *interest* of which is or shall be *guaranteed by Parliament*."

20. **Metropolitan Board of Works stock.** — By another Act (*a*) a trustee, executor, or other person empowered to invest money in public stocks or funds, or other Government securities, may, unless forbidden by the will or other instrument under which he acts, whether prior in date to the Act or not, invest the same in consolidated stock created by the *Metropolitan Board of Works*.

(*c*) *Allen v. Hancorn*, 7 B. P. C. 375.

(*d*) 23 & 24 Vict. c. 145, s. 25.

[(*e*) 44 & 45 Vict. c. 41, s. 71.]

(*f*) 30 & 31 Vict. c. 132, s. 2.

(*a*) 34 & 35 Vict. c. 47, s. 13.